IN THE CIRCUIT COURT OF THE FIFTH JUDICIAL CIRCUIT, IN AND FOR MARION COUNTY, FLORIDA

CASE NO.: 2019-CA-01560

KENNETH BEJA,

Plaintiff,

v.

MICHAEL ODOM AND BLAC INVESTMENTS, INC.,

Defendants.
_____/

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NOTICE OF SERVICE OF DEFENDANT'S
FIRST SET OF SUPPLEMENTAL INTERROGATORIES TO PLAINTIFF

Defendant, MICHAEL ODOM ("Defendant"), by and through its undersigned counsel, and hereby notifies this Court and counsel of record that it has served its First Set of Supplemental Interrogatories upon Plaintiff, KENNETH BEJA, to be answered under oath in writing within thirty (30) days, in accordance with the Florida Rules of Civil Procedure.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 20th day of January, 2021, a true and correct copy of the foregoing was filed with the Clerk of Marion County by using the Florida Courts e-Filing Portal, which will send an automatic e-mail message to the following parties registered with the e-Filing Portal system: Christopher J. Hinckley, Esq., Morgan & Morgan, P.A., chinckley@forthepeople.com;nlogan@forthepeople.com, 1007 E. Silver Springs Boulevard, Ocala, FL 34470, (352) 644-2000/(352) 644-2001 (F), Attorney for

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Plaintiff, Kenneth Beja and Kenneth B. Rugh, Esq., Hill, Rugh, Keller & Main, P.L., filings@hrkmlaw.com, 390 N. Orange Ave., Suite 1610, Orlando, FL 32802, (407) 926-7460/(407) 926-7461 (F), Attorney for Defendant, Blac Investments, Inc..

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SCOTT A. SHELTON
Florida Bar No.: 36486

6001.1742-00/22453856

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DEFINITIONS AND INSTRUCTIONS

Please refer to these definitions and instructions in providing your answers. Unless otherwise clearly indicated by the context thereof, the following definitions and instructions shall apply to each of the Interrogatories set forth below:

Definitions

1. "Plaintiff" shall mean Plaintiff KENNETH BEJA.

2. "You" and "your" shall mean Plaintiff and any employees, agents, attorneys, representatives or other persons acting on his/her behalf

3. "Communication" means, without limitation, any oral, written, telephonic, radio, video or electronic transmission of information, demands or questions, including but not limited to conversations, meetings, discussions, telephone calls, telegrams, telecopies, telexes, seminars, conferences, writings, letters, messages, notes, or memoranda.

4. "Document" means all writings and recordings, whether printed, recorded, written, produced by hand, or reproduced by any other mechanical means or process, which are in your actual or constructive possession, custody or control, or of which you have knowledge of the existence, whether prepared, published or released by you or by any other person or entity. The definition is intended to include, but is not limited to, the following items: agreements; correspondences; e-mails (including those that have been deleted but which are nonetheless recoverable); records; ledgers; contracts; bills; invoices; bills of lading; inventories; financial data; memoranda; accounting and financial records; diaries; statements; telegrams; tape recordings; drafts; work papers; paper and magnetic tapes; charts; computer cards and print outs; electronically or magnetically stored information or data (including data contained in or on hard drives, backup files, floppy disks or any other manner of storage); minutes; publications; calendars; telephone pads; bulletins; directives; logs and listings; notes or other recordings of telephone conversations, personal conversations, or meetings; photographs; photographic slides; motion picture film; charts; graphs; diagrams; drawings; bookkeeping entries; orders; vouchers; canceled checks; statements of witnesses; reports; papers; books; objects; maps; pamphlets; flyers; and any and every other writing or other graphic means by which human intelligence is in any way transmitted or reported. Without limitation on the foregoing, the term "documents" shall include any copy which differs in any respect from the original or other versions of the documents, such as copies containing notations, insertions, corrections, marginal notes or any variations.

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5. "Person" includes natural persons, corporations, partnerships, ventures, and all other forms of organization or association.

6. "Identify" means, when used in reference to:

   A. An individual, to state his or her (I) full name; (ii) present or last known home and business address, including street name and number, city or town and zip code, and telephone number; (iii) present or last known position, job title and job description;

   B. A person, other than an individual, to state its (I) full name and type of organization or entity; (ii) address or principal place of business, including street name and number, city or town and zip code, and telephone number; and (iii) jurisdiction and date of incorporation or organization, if known.

   C. Documents, to state (I) the name and date of the document, the name and address of the person(s) originating the document, the name and address, if any, of the person(s) to whom the document is addressed, the names and addresses of all persons to whom copies of the documents were to have been sent; and the organization, firm or agency with which any such persons were connected as of the date of the document; and (ii) whether Plaintiff is in possession of or have under their control the original or a copy of the document, and, if not in possession of an original or copy, the name and address of the custodian of each original copy, and the name and address of each person who Plaintiff believes presently is in possession of the original or copy of such document. In lieu of identifying particular documents, when such identification is requested, the document may, at Plaintiff's option, be attached to the response to these interrogatories, bearing an indication to which interrogatory or interrogatories each document relates.

   D. Conversations, to state the date and place and approximate time of day of the conversation, the identity of all persons in attendance, the subject matter and reasons for the conversation, the statements made by each person, including the context in which they were made and the identity of any writings or recordations which exist relating thereto.

   E. A claim, the name of the claimant, the nature of the claim, the names of all parties to any lawsuit, the court number, if any, the date of the claim, the date upon which Plaintiff first became aware of the claim, the relief sought, and the present status or final disposition of the claim.

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F. Any other item or information, to provide a particular description of the same.

7. "Date" shall mean the exact day, month and year, if ascertainable, or if not, the best approximation thereof, including relationship to other events.

8. "Describe" shall mean to set forth fully and clearly every fact or event of which you have knowledge relevant to the answer called for by the interrogatory and "identify" each document which concerns said information

9. "And" shall include "or," and the term "or" shall include "and." "All" and "any" shall mean "any and all."

10. A "Letter of Protection" or "Doctor's lien" includes, but is not limited to, any agreement between a patient and a treating physician or healthcare provider regarding the provision of medical treatment and services in exchange for deferred payment of the physician or provider's bills from the proceeds of a settlement or award received by the patient in a lawsuit. It also refers to any document titled letter of protection or lien, or any combination of same. It also includes any document, correspondence, letter, or fax, which the physician requests signed by Plaintiff or Plaintiff's law firm, past or present, in conjunction with medical treatment.

11. Whenever relevant, words in the singular shall include the plural thereof.

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Instructions

1. Privilege. If you contend that you are entitled to withhold information falling within the purview of this First Set of Interrogatories on the basis of the attorney-client privilege, the work-product doctrine, or any other ground, such information should be identified by providing a description of the following:

   A. Describe the subject matter of the information in enough detail to determine the validity of the claimed privilege;

   B. Identify the person(s) who have knowledge or who have transmitted said information;

   C. State the nature and basis of the privilege or other ground claimed for withholding the information and;

   D. The date such information was transmitted to or by you.

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2. Documents. If a document, or documents will provide the requested information, attach the document(s) to your responses and indicate the Interrogatory to which same is responsive.

DEFENDANT'S FIRST SET OF SUPPLEMENTAL INTERROGATORIES TO PLAINTIFF

1. Please state the amount of past medical expenses you are claiming for the subject incident;

   RESPONSE:

2. Please state the identity and amount of any liens associated with Plaintiff's past medical expenses.

   RESPONSE:

3. Please state whether Plaintiff is making a claim for future medical expenses and, if so, the amount of same.

   RESPONSE:

4. Please state the name / contact information for each witness that Plaintiff claims will support Plaintiff's claims for future medical expenses.

   RESPONSE:

5. Please state whether Plaintiff is making a claim for past lost wages and, if so, the amount.

   RESPONSE:

6. Please state the name / identity of each witness who will testify in support of Plaintiff's claim for past lost wages.

   RESPONSE:

7. Plaintiff state whether Plaintiff is making a claim for loss of future earning capacity and, if so, the amount of same.

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RESPONSE:

8. Please state the name / identity of each witness who will testify to support Plaintiff's claim for loss of future earning capacity.

RESPONSE:

9. Please state whether you have been involved in any other accidents / or incidents since answering your prior Interrogatories in this case. If so, please provide details regarding the nature of the accident and the identify any medical providers who have treated you as a result.

RESPONSE:

10. Please state if you have treated with any new medical providers not disclosed in your prior answers to Interrogatories and, if so, the name and contact information for same as well as the reasons for treatment.

RESPONSE:

11. Please state whether you have signed any new Letters of Protection since answering your prior Interrogatories.

RESPONSE:

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_____
KENNETH BEJA

KENNETH BEJA, being duly sworn, deposes and says that the attached answers to Defendant's First Set of Interrogatories are true and correct to the best of his/her knowledge, information and belief.

STATE OF _____

COUNTY OF _____

Sworn to and subscribed before me by means of ☐ physical presence or ☐ online notarization, this _____ day of _____, 2021, who is personally known to me or who has produced _____as identification.

_____
NOTARY PUBLIC, State of _____

My Commission Expires: _____

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